

unprecedented intrusion. Its opinion candidly acknowledged that the personal-privacy claim was the "most troublesome" point raised by this unique statute.²¹ In addition to communications and memoranda reflecting the President's confidential deliberations, the District Court admitted that the materials subject to GSA review included highly personal communications.

"Among all of the papers and tape recordings falling within the Act, however, are some papers and materials containing extremely private communications between [Mr. Nixon] and, among others, his wife, his daughters, his physician, lawyer, and clergyman, and his close friends, as well as personal diary dictabelts and his wife's personal files. . . . Segregating those that are private from those that are not private requires rather comprehensive screening, and archivists entrusted with that duty will be required to read or listen to private communications." 408 F. Supp. 321, 359 (DC 1976).

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Given this admitted intrusion, the legislation before us must be subjected to the most searching kind of judicial scrutiny.²² Statutes that trench on fundamental liberties, like

²¹ The District Court concluded its discussion of the privacy challenge as follows: "We would be less than candid were we to state that we find it as easy to dispose of Mr. Nixon's privacy claims as his claim of presidential privilege." 408 F. Supp., at 367.

²² Although the District Court expressly concluded that the former President had a "legitimate expectation" that his Presidential materials would not be subject to "comprehensive review by government personnel without his consent," *id.*, at 361, the Court nonetheless deemed the compulsory intrusion permissible given the constitutionality of the federal wire-tap statute, 18 U. S. C. §§ 2510-2520, which of course permits substantial governmental intrusions into the privacy of individuals. Not only is this analogy imperfect, as the District Court itself admitted, 408 F. Supp., at 364, but this analysis fails to apply the "exacting scrutiny" called for by our decisions. Above all, the present statute fails to provide *any* of the